

Arvind Gupta @ Chhote v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 September 2014 · Criminal Misc. Writ Petition No. 16566 of 2014 · **FIR under s.135 not quashed; CrPC 41/41-A directed if arresting; compounding left to Supply Code, 2005.**

HEADNOTE

An FIR under s.135 of the Electricity Act that discloses a cognizable offence is not quashed. Arrest, if made for an offence not punishable with more than seven years, must comply with CrPC ss. 41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Arvind Gupta alias Chhote, sought quashing of an FIR dated 10 April 2014 registered as Case Crime No. 449 of 2014 under Section 135 of the Electricity Act at Police Station Konch, District Jalaun. He had not been arrested. Counsel argued that the alleged offence carried a maximum sentence not exceeding seven years, that arrest should not be mechanical, and that the offence was compoundable. The complainant and the State were represented. The Court perused the FIR and disposed of the writ.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR — quash, arrest and compounding

HOLDING

Where an FIR under s.135 discloses a cognizable offence, it will not be quashed. If arrest is to be made and the offence cannot attract a sentence of more than seven years, the police must comply with CrPC s. 41(1)(b) read with s. 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE S.135 OFFENCE IS COMPOUNDABLE AND WHETHER COMPOUNDING SHOULD BE GRANTED UNDER THE ELECTRICITY SUPPLY CODE, 2005

Court only observed that if the offence is compoundable the petitioner may seek the Supply Code remedy; it did not grant or refuse compounding. ¶ 1